Notification Waiver Determination

Morgan Stanley – Epic Energy

Acquisition	North Haven Infrastructure Partners IV Fund (**North Haven**), via McLeod Bidco Pty Ltd (**McLeod Bidco**), proposes to acquire from ART Investment Holdings Pty Limited as trustee for ART Investments Trust (**ART**) 100% of the share capital in each of QS MAPS Holdings No.1 Pty Ltd and QS MAPS Holdings No.2 Pty Ltd, as described in the transaction documents provided as part of the application (the **Acquisition**). McLeod Bidco applied for a notification waiver in respect of the Acquisition.
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the *Competition and Consumer Act 2010* (Cth) that the Acquisition is not required to be notified.
Date of determination	2 September 2026

Parties to the Acquisition	North Haven is a global investment fund that consists of several limited partnerships and feeder funds, acting through wholly owned subsidiaries. North Haven's General Partners are Morgan Stanley Infrastructure IV GP L.P. and Morgan Stanley Infrastructure IV Investors GP S.a.r.l. Morgan Stanley Infrastructure Inc. (**MSI**) is a global private infrastructure investment platform, acting as the manager of North Haven, overseeing its operations of behalf of North Haven's General Partners. ART is a subsidiary operating under Australian Retirement Trust, one of Australia's largest superannuation funds. The target entities, QS MAPS Holdings No.1 Pty Ltd and QS MAPS Holdings No.2 Pty Ltd, are holding companies for Epic Energy, a major energy infrastructure provider. Epic Energy owns and operates two major gas transmission pipelines in South Australia: the Moomba to Adelaide Pipeline System (with a connection to the Port Pirie Lateral Pipeline) and the South-East Pipeline System. Epic Energy also operates a renewable electricity generation and storage business with wind and solar assets across South Australia and Victoria, as well as battery projects.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the **ACCC**) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the *Competition and Consumer Act 2010* (Cth) (the **Act**).

	Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition given: a. there is no horizontal overlap between North Haven (or its connected entities) and Epic Energy or between MSI (or its connected entities) and Epic Energy in Australia b. there is a low risk of foreclosure or other concerning vertical effects resulting from exclusionary conduct post-acquisition. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines.

Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act